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David W. Slayton,
Executive Officer/Clerk of Court,
By R. Yanez, Deputy Clerk

DERRICK LAMONT BEVERLY

Propria Persona, Sui Juris

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SUPERIOR COURTHOUSE

OF THE

STATE OF CALIFORNIA

COUNTY OF

LOS ANGELES

- STANLEY-MOSK SUPERIOR COURTHOUSE –

CENTRAL DISTRICT

DERRICK LAMONT BEVERLY,

Plaintiff,

vs.

FOX NORMANDIE APARTMENTS, L.P.; A COMMUNITY OF FRIENDS; and DOES 1–50, inclusive,

Defendant

Case No.22STUD06557

Declaration Regarding Short Notice

Declaration Regarding Shortened Notice and Exceptional Circumstances

Emergency Ex-Parte Application

EX PARTE APPLICATION

TO ALL PARTIES AND TO THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on December 1, 2025, at 1:30 p.m., or as soon thereafter as the matter may be heard in Department 91 of the above-entitled Court, located at 111 N. Hill Street, Los Angeles, California 90012, Defendant DERRICK LAMONT BEVERLY ("Defendant") will and does apply ex parte for the following relief, to be heard today without further delay:

1. An immediate stay of any lockout, enforcement of writ of possession, or equivalent eviction action arising from the judgment in this matter, including any current or future attempts to execute or re-execute a lockout against Defendant relating to 1825 N. Cahuenga Blvd, Unit #101, Los Angeles, California;
2. An order temporarily restraining Plaintiff and its agents from taking any further action to remove Defendant from housing or to block access to safe shelter pending full hearing on a noticed motion or order to show cause;
3. Housing-protective relief as the Court deems just and proper to prevent ongoing and future irreparable harm resulting from Defendant's displacement and homelessness; and
4. Any further or alternative relief, including setting of a follow-up hearing on shortened time, that the Court finds appropriate.

Defendant expressly seeks and relies on the attached declarations describing irreparable harm, immediate danger, and a housing-related emergency, including ongoing street homelessness, exposure to unsafe conditions, and severe prejudice to Defendant's ability to regain stable housing or meaningfully participate in the litigation.

This ex parte application is made on the grounds that:

- Defendant is presently unhoused and displaced as a direct consequence of the unlawful detainer judgment and enforcement in this matter;
- Defendant faces continuing irreparable harm and immediate danger, including exposure to the elements, health risks, and safety threats;
- Each additional day without relief further entrenches homelessness and harms that cannot be remedied by money damages after the fact; and
- Ex parte relief and shortened notice are specifically authorized in unlawful detainer / housing matters under California Rules of Court, rules 3.1202, 3.1203(b), and 3.1204(c),

where notice given after 10:00 a.m. is reasonable under the circumstances and supported by a declaration.

This application is based on:

- This Ex Parte Application;
- The accompanying Memorandum of Points and Authorities;
- The Declaration of Derrick LaMont Beverly describing irreparable harm, immediate danger, and the housing emergency;
- The Declaration re Notice and Shortened Notice (CRC 3.1203 & 3.1204), including the date and time notice was given to Plaintiff's counsel via email and e-filing correspondence at ada@loacs.com;
- The [Proposed] Order;
- The Court's file in this case; and
- Such further oral or documentary evidence as may be presented at the hearing.

DATED: December 1, 2025 _____

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Defendant Derrick LaMont Beverly seeks emergency ex parte relief because the existing unlawful detainer judgment and enforcement posture have resulted in street-level homelessness, loss of shelter, and exposure to dangerous conditions. Defendant is currently unhoused, and the ongoing effects of the judgment are preventing him from regaining stable housing, including through voucher- and program-based systems.

Under California Rules of Court, rules 3.1202, 3.1203, and 3.1204, and the Court's inherent equitable powers, this Court may stay enforcement and issue interim protective orders to prevent irreparable harm and immediate danger. This matter arises from an unlawful detainer judgment that led to a sheriff's lockout on or about January 26, 2023, and continues to be used against Defendant in tenant screening, shelter intake, and housing-program decisions.

Defendant has concurrently or prospectively brought a motion under Code of Civil Procedure section 473(d) to vacate the void default and judgment, but that noticed motion cannot be heard quickly enough to address today's housing emergency. Ex parte relief is required to prevent further irreparable harm while that motion is considered.

II. LEGAL STANDARD FOR EX PARTE RELIEF

Rule 3.1202(c) requires an applicant for ex parte relief to make an affirmative factual showing by declaration based on personal knowledge of:

- Irreparable harm;
- Immediate danger; or
- Any other statutory basis for granting ex parte relief.

Rule 3.1203(a) generally requires that notice of an ex parte application be given no later than 10:00 a.m. the court day before the appearance. However, Rule 3.1203(b) expressly provides that in unlawful detainer cases, a party may provide shorter notice, so long as the notice given is reasonable under the circumstances.

Rule 3.1204(c) further provides that when notice is given after 10:00 a.m., the declaration re notice must explain: (1) why notice could not be given earlier, and (2) in unlawful detainer cases, why the shortened notice is reasonable under Rule 3.1203(b).

III. APPLICATION OF STANDARD TO THIS CASE

As set forth in the Declaration of Derrick LaMont Beverly, Defendant:

- Has been locked out and displaced from the subject premises;
- Is currently unhoused, living in unstable, street-level or ad hoc conditions;
- Faces ongoing health and safety risks, including exposure to the elements, lack of sanitary facilities, threat of assault or theft, and severe emotional distress; and
- Has had his ability to regain housing, participate in programs, and meaningfully litigate his case severely compromised by the unlawful detainer judgment and its continuing collateral use.

These circumstances constitute classic irreparable harm and immediate danger. A standard noticed motion would not provide relief in time to prevent further damage, especially where the emergency relates to basic shelter and survival.

With respect to notice, Defendant explains in his Declaration re Notice and Shortened Notice that:

- On Friday, November 28, 2025, at approximately 5:15 p.m., he provided notice of this ex parte application and the relief sought to Plaintiff's counsel at ada@loacs.com:
  - By email, and
  - Through e-filing correspondence via the Court's electronic filing system; and
- That notice informed counsel of:
  - The nature of the relief requested (emergency stay of lockout / enforcement of writ and housing-protective relief),
  - The hearing date, time, and department (December 1, 2025, at 1:30 p.m., Dept. 91), and
  - Defendant's reliance on declarations describing irreparable harm, immediate danger, and a housing-related emergency.

Because this notice was given after 10:00 a.m. on the court day before the ex parte appearance, Defendant explicitly invokes CRC 3.1203(b) and 3.1204(c) and requests acceptance of shortened notice as reasonable in the unlawful detainer context, given the urgency of the housing crisis and Defendant's status as unhoused and self-represented.

IV. RELIEF REQUESTED

Defendant requests that the Court:

1. Issue an order staying any lockout, enforcement of writ, or equivalent eviction action arising from this unlawful detainer judgment;
2. Temporarily restrain Plaintiff and its agents from taking any further action that would remove Defendant from housing or block his access to safe shelter;
3. Accept the shortened notice given as reasonable in the unlawful detainer context under CRC 3.1203(b) and 3.1204(c); and
4. Set any further hearings necessary on shortened time to allow the Court to consider Defendant's related motions (including the § 473(d) motion to vacate) on the merits.

DATED: December 1, 2025 _____

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona

DECLARATION OF DERRICK LAMONT BEVERLY

IN SUPPORT OF EX PARTE APPLICATION

(IRREPARABLE HARM, IMMEDIATE DANGER,

HOUSING-RELATED EMERGENCY)

I, DERRICK LAMONT BEVERLY, declare:

1. I am the Defendant in this action, case no. 22STUD06657. I make this declaration in support of my Ex Parte Application for: (1) Emergency Stay of Lockout / Enforcement of Writ; (2) Housing-Protective Relief; and (3) Other Appropriate Relief. I have personal

knowledge of the facts stated herein and, if called as a witness, could and would testify competently thereto.

2. This case arises from an unlawful detainer judgment concerning my former residence at 1825 N. Cahuenga Blvd, Unit #101, Los Angeles, California. A default judgment for possession was entered on or about November 29, 2022, and a sheriff's lockout was executed on or about January 26, 2023, removing me from the unit.
3. Since that lockout, I have been displaced and unhoused. I do not have stable indoor shelter. I have been forced to survive outdoors or in unstable, temporary settings that do not provide consistent safety, privacy, or access to basic necessities.
4. As a result, I face ongoing irreparable harm and immediate danger, including but not limited to:
    - Exposure to extreme temperatures, weather, and environmental conditions;
    - Lack of sanitary facilities, creating health risks and indignity;
    - Heightened risk of assault, theft, and harassment in public spaces;
    - Difficulty accessing consistent food, water, and medical care; and
    - Severe emotional distress, anxiety, and trauma.
5. These conditions also severely impair my ability to meaningfully participate in this case. It is difficult to maintain documents, charge electronic devices, access the internet, and prepare filings while unhoused and exposed to the elements.
6. The unlawful detainer judgment continues to be used against me in:
    - Landlord and property-management screening reports;
    - Voucher and Section 8 eligibility or reinstatement decisions; and
    - Emergency or supportive housing intake processes.

    This has made it extremely difficult for me to secure any replacement housing, and my homelessness is directly tied to this judgment and its enforcement.

7. Each day without relief deepens the harm. A standard noticed motion would not provide timely protection, because by the time it is heard, the damage to my health, stability, and ability to reintegrate into housing will have substantially worsened.
8. I am not seeking to use ex parte procedures to gain unfair advantage. I am using them because I am currently unhoused, in danger, and have no realistic way to protect myself from further harm other than immediate court intervention.
9. In addition to this ex parte application, I have prepared or am preparing a motion under Code of Civil Procedure section 473(d) to vacate what I believe is a void default and default judgment for lack of proper service and notice. However, that motion requires regular briefing and cannot be heard today. Ex parte relief is needed to protect my safety and housing interests in the interim.
10. I respectfully ask the Court to:
    - Stay any lockout or enforcement of writ;
    - Prevent any further eviction-related actions that would deepen my homelessness; and
    - Allow me a fair opportunity to be heard on the merits of my defenses and motions.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 1, 2025, at Los Angeles, California.

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona

DECLARATION RE NOTICE AND SHORTENED NOTICE

(CRC 3.1203 & 3.1204 – UNLAWFUL DETAINER / HOUSING)

I, DERRICK LAMONT BEVERLY, declare:

1. I am the Defendant and moving party in this action, case no. 22STUD06657. I make this Declaration re Notice and Shortened Notice pursuant to California Rules of Court, rules 3.1202, 3.1203, and 3.1204. I have personal knowledge of the facts stated herein and could testify competently thereto.
2. The ex parte application is set to be heard today, December 1, 2025, at 1:30 p.m., in Department 91 of the Stanley Mosk Courthouse.
3. On Friday, November 28, 2025, at approximately 5:15 p.m., I provided notice of this ex parte application to counsel for Plaintiff FOX NORMANDIE APARTMENTS, LP as follows:

   a. By E-Mail: I sent an email to ada@loacs.com advising that I would be appearing ex parte on Monday, December 1, 2025, at 1:30 p.m. in Dept. 91. The email stated that I would be seeking an emergency stay of any lockout / enforcement of writ and housing-protective relief, and that I would be relying on declarations describing irreparable harm, immediate danger, and a housing-related emergency.

b. By E-Filing Correspondence: I submitted ex parte papers and/or related filings through the Court's electronic filing system, which generated electronic service and/or e-filing correspondence to Plaintiff's counsel at ada@loacs.com, including notice of the nature of the relief requested and the hearing date, time, and department.

4. In that notice, I informed Plaintiff's counsel that:
    - I would be requesting an emergency stay of any lockout, enforcement of writ, or equivalent eviction action;
    - I would be requesting housing-protective relief due to my current homelessness and ongoing danger; and
    - I would be relying on declarations addressing irreparable harm, immediate danger, and the housing-related emergency.
5. Because this notice was given after 10:00 a.m. the court day before the ex parte hearing, I state the following, consistent with CRC 3.1202(c), 3.1203(b), and 3.1204(c):

[A] UNLAWFUL DETAINER / HOUSING – SHORTENED NOTICE UNDER CRC 3.1203(b)

[ ] In these unlawful detainer–related circumstances, the shorter notice is reasonable because the underlying dispute directly concerns loss of housing and homelessness, the judgment is continuing to be used to block my access to housing and shelter, and the timing and logistics of my unhoused status made it impossible to provide full 10:00 a.m. notice while still seeking meaningful relief.

[B] IRREPARABLE HARM / IMMEDIATE DANGER – AFFIRMATIVE FACTUAL SHOWING (CRC 3.1202(c))

[ ] I make an affirmative factual showing based on personal knowledge that I am currently unhoused, living in unstable conditions, and exposed to immediate danger and irreparable harm, including health and safety risks, ongoing trauma, and compounding barriers to re-entering housing.

[C] SHORTENED NOTICE AND EXCEPTIONAL CIRCUMSTANCES (CRC 3.1204(c))

[ ] Because this notice was given after 10:00 a.m. the court day before, I respectfully ask the Court to accept shortened notice under CRC 3.1203(b) and 3.1204(c) for the following exceptional circumstances:

- I am self-represented,

- I am unhoused with limited access to power, devices, and legal resources,

- I acted as promptly as possible upon preparing the ex parte application, and

- Strict enforcement of the 10:00 a.m. deadline would produce real prejudice by leaving me exposed to continued homelessness and danger, while offering no meaningful benefit to Plaintiff beyond a purely technical advantage.

[D] TIME AND MANNER OF NOTICE – REASONABLENESS

[ ] Notice was given on Friday, November 28, 2025, at approximately 5:15 p.m., by email and e-filing correspondence to ada@loacs.com. Although this notice was given after 10:00 a.m., it is reasonable because it clearly informed Plaintiff of the date, time, department, and relief sought; it gave counsel a meaningful opportunity to appear or respond on the following court day; and the emergency nature of the housing crisis leaves no realistic alternative schedule that would still protect my rights.

[E] DEADLINE AND PREJUDICE QUESTION

[ ] If the 10:00 a.m. deadline were rigidly enforced in this case, despite my having given actual, documented notice on Friday at approximately 5:15 p.m., the result would be substantial prejudice to me, not to Plaintiff. I would remain unhoused and exposed to danger, while Plaintiff suffers no comparable prejudice from a same-business-day opportunity to appear. For that reason, I respectfully submit that this deadline should not be applied in a way that defeats the protective purpose of ex parte relief in a housing emergency.

[F] NOTICE THAT WOULD DEFEAT THE PURPOSE – CRC 3.1204(b)(3)

[ ] Under CRC 3.1204(b)(3), if notice has not been given, the declaration must explain why, including if "notice would defeat the purpose of the ex parte appearance."

In some housing or safety scenarios, advance notice can trigger retaliatory acts—such as accelerated lockouts, self-help eviction, or destruction of evidence—which would defeat the purpose of seeking emergency court protection.

In this case, I did give notice, but I respectfully request that the Court recognize that in future or related ex parte applications affecting housing or personal safety, there may be circumstances where notice should not be required because the act of giving notice would itself cause or accelerate the very harm the Court is being asked to prevent.

[G] FUTURE-USE TEMPLATE – DECLARATION REGARDING SHORTENED NOTICE AND EXCEPTIONAL CIRCUMSTANCES

[ ] I request that the Court treat the following paragraphs as a model template that I may incorporate by reference in future ex parte filings, with appropriate case-specific modifications:

(1) UD + Shortened Notice (CRC 3.1203(b))

"In these unlawful detainer–related circumstances, the shorter notice is reasonable because the relief sought directly concerns loss of housing and homelessness, the applicant is facing ongoing or imminent displacement, and full 10:00 a.m. notice is not realistically compatible with the urgency and logistics of the emergency situation."

(2) Unsafe Lockout / Homelessness (CRC 3.1202(c))

"Based on my personal knowledge, I am facing unsafe lockout conditions and/or ongoing homelessness that place me at immediate risk of harm. This constitutes irreparable harm and immediate danger under CRC 3.1202(c), warranting ex parte intervention."

(3) Notice Would Defeat the Purpose (CRC 3.1204(b)(3))

"In certain cases, giving prior notice would defeat the purpose of the ex parte application because it would likely trigger retaliatory acts (such as self-help lockout, accelerated displacement, or destruction of evidence) by the opposing party. In those circumstances, I respectfully request that the Court find under CRC 3.1204(b)(3) that prior notice should not be required."

6. In this particular application, I have in fact provided notice and am not asking the Court to waive notice entirely. I am asking the Court to accept shortened notice as reasonable in this unlawful detainer / housing matter and to avoid applying the 10:00 a.m. deadline in a way that would defeat the protective purpose of ex parte relief and cause disproportionate prejudice to an unhoused, self-represented litigant.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 1, 2025, at Los Angeles, California.

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona

[PROPOSED] ORDER ON EX PARTE APPLICATION

[ATTORNEY OR PARTY WITHOUT ATTORNEY:

DERRICK LAMONT BEVERLY

[Mailing Address]

[City, State ZIP]

Telephone: []

E-Mail: []

Defendant, In Propria Persona]

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

FOX NORMANDIE APARTMENTS, LP,) Case No.: 22STUD06657

)

Plaintiff,) [PROPOSED] ORDER ON

) EX PARTE APPLICATION FOR:

vs.)

) (1) EMERGENCY STAY OF

DERRICK LAMONT BEVERLY,) LOCKOUT / ENFORCEMENT

) OF WRIT;

Defendant.) (2) HOUSING-PROTECTIVE

_____) RELIEF;

(3) OTHER APPROPRIATE RELIEF

The ex parte application of Defendant DERRICK LAMONT BEVERLY for Emergency Stay of Lockout / Enforcement of Writ, Housing-Protective Relief, and Other Appropriate Relief came on for hearing on December 1, 2025, at 1:30 p.m., in Department 91 of the above-entitled Court, the Honorable _____ presiding.

The Court, having considered the Ex Parte Application, the Memorandum of Points and Authorities, the Declaration of Derrick LaMont Beverly, the Declaration re Notice and Shortened Notice (CRC 3.1203 & 3.1204), any opposition, and the records and pleadings on file, and good cause appearing, hereby ORDERS as follows:

1. Defendant's Ex Parte Application is:

   [ ] GRANTED

   [ ] DENIED

2. IF GRANTED, the Court further ORDERS:

   a. STAY OF ENFORCEMENT: Any and all lockouts, enforcement of writ of possession, or equivalent eviction actions relating to Defendant's former occupancy at 1825 N. Cahuenga Blvd, Unit #101, Los Angeles, California are hereby STAYED until further order of this Court.

   b. NO FURTHER SELF-HELP OR ENFORCEMENT ACTIONS: Plaintiff and its agents, representatives, and all persons acting in concert with them are RESTRAINED AND ENJOINED from taking any further actions that would remove Defendant from housing or otherwise worsen Defendant's homelessness or displacement pending further order.

   c. FURTHER HEARING: This matter is set for further hearing / order to show cause on _____, 20____, at _____ __.m. in Department 91, at which time the Court will consider whether to continue, modify, or dissolve this stay and any related relief.

   d. SERVICE OF ORDER: Defendant shall serve a copy of this Order on Plaintiff or Plaintiff's counsel forthwith by [ ] e-mail [ ] electronic filing service [ ] other: _____.

3. IF DENIED, the Court makes the following findings (if any):

IT IS SO ORDERED.

DATED: _____, 20 _____

JUDGE OF THE SUPERIOR COURT

DEPARTMENT 91

PROOF OF SERVICE

(EX PARTE APPLICATION AND SUPPORTING PAPERS)

NOTE: The person signing this Proof of Service must be over 18 years old and not a party to this action.

I, [Name of Server], declare:

1. I am over the age of 18 years and not a party to this action. I am a resident of or employed in the County of Los Angeles, State of California. My address is:

2. On December 1, 2025, I served the following documents:
   - EX PARTE APPLICATION FOR: (1) EMERGENCY STAY OF LOCKOUT / ENFORCEMENT OF WRIT; (2) HOUSING-PROTECTIVE RELIEF; (3) OTHER APPROPRIATE RELIEF;

- MEMORANDUM OF POINTS AND AUTHORITIES;
- DECLARATION OF DERRICK LAMONT BEVERLY;
- DECLARATION RE NOTICE AND SHORTENED NOTICE (CRC 3.1203 & 3.1204);
- [PROPOSED] ORDER

on the following party:

Attorney for Plaintiff FOX NORMANDIE APARTMENTS, LP

Name: [Name if known]

E-Mail: ada@loacs.com

Address (if used for mail or personal service):

3. MANNER OF SERVICE (check all that apply):

[ ] BY ELECTRONIC SERVICE / E-FILING:

I caused the documents listed above to be electronically served via the Court's approved electronic filing service provider (EFSP) on the party listed above on December 1, 2025, at the e-mail address associated with counsel's e-filing registration, including ada@loacs.com, in accordance with California Rules of Court, rule 2.251.

[ ] BY E-MAIL:

I caused a true and correct copy of the documents to be sent by e-mail to ada@loacs.com on December 1, 2025. I did not receive any electronic message or other indication that the transmission was unsuccessful.

[ ] BY MAIL:

I enclosed the documents in a sealed envelope, with postage fully prepaid, addressed as stated above, and deposited the envelope in the United States mail at _____, California, on December 1, 2025. I am readily familiar with this business's practice for collection and processing of correspondence for mailing. Under that practice, the correspondence would be deposited with the United States Postal Service on the same day in the ordinary course of business.

[ ] BY OVERNIGHT DELIVERY:

I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed as stated above. I placed the envelope or package for collection and overnight delivery at an office or a regularly utilized drop box of the overnight delivery carrier.

[ ] BY PERSONAL DELIVERY:

I personally delivered the documents to the office of the addressee at the address listed above. I left the documents with a receptionist or other person apparently in charge at that office.

4. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 1, 2025, at _____, California.